



March 6, 2025

Noah Coleman
630 W Allen Cv
Midvale, UT 84047

Dear Noah:

I am pleased to provide you with an offer of employment with **Incontact, Inc.**, a NICE company (the "Company").

1. **Position.** Your position will be Sales Development Representative, reporting to Lance Johnson - Manager, Sales Development, CX. In addition to performing duties and responsibilities associated with this position, from time to time the Company may assign you other duties and responsibilities. As a full-time employee of the Company, you will be expected to devote your full business time and energies to the business and affairs of the Company.

The duties and responsibilities associated with your position will be performed from a combination of office-based work and remote (e.g., home office) work, as may be determined by the Company from time to time in its discretion. Office-based work is to generally be performed from the Company's offices located in Salt Lake City, UT, US.

2. **Starting Date/Nature of Relationship.** It is anticipated that your employment with the Company will start on or about **March 17, 2025**.

3. **Compensation.**

Salary. Your initial base salary will be at the rate of **\$2,250.00** semi-monthly, annualized at **\$54,000.00**. This position is currently classified as exempt and therefore is not eligible for overtime.

Commission: In addition, you will be eligible to participate in the Company's Commission Plan ("Plan"). Your annual incentive compensation if you achieve Plan targets will be **\$36,000**. Additional details regarding the calculation and payment of commissions are described in the Plan, which will be provided to you by your manager.

4. **Benefits.** You will be eligible for the entire range of benefits available through the Company's Employee Benefits program. The health, vision and dental plans only will be available for you and your family on your start date. Other benefits will be subject to plan participation eligibility terms and dates. The Company retains the right to change, add or cease any particular benefit. You will receive fifteen (15) days annual vacation per calendar year, and the unused portion of the vacation can be carried over into the following year up to an accumulated maximum of ten (10) days carry-over, except that if a greater carry-over is required by applicable state law, then you will cease to accrue further vacation days until the excess vacation days beyond such greater carry-over are used. Except to the extent prohibited by applicable state law, any accrued vacation days that remain unused as of your last day of employment will be forfeited.

5. **Confidentiality/Noncompetition.** The Company considers the protection of its confidential information and proprietary materials to be very important. Therefore, as a condition of your employment, you and the Company will become parties to the Confidentiality and Developments Agreement ("Confidentiality Agreement") attached to this offer letter. As a further condition to your employment, you and the Company will become parties to the Non-Competition Agreement attached to this offer letter.



6. **Termination.** You understand that, should you accept employment with the Company, you will be an at-will employee. As an at-will employee, either you or the Company may terminate the employment relationship at any time and for any reason, with or without cause, and with or without prior notice. Upon termination of your employment, you shall return to the Company all equipment, identification badges, and keys given to you by the Company or generated during your tenure with the Company.

7. **Anti-Corruption.** You hereby confirm that you are in receipt of and have read the provisions of the Company's Code of Ethics and Business Conduct (the "Code") and Company's Anti-Corruption and Bribery policy (the "Policy"), and are therefore aware of the Company's zero tolerance of all forms of bribery and corruption, in all business dealings of the Company and of the Company's business associates worldwide. You hereby undertake to comply strictly with the provisions of the Code relating to bribery and corruption, and the Policy. Any violations of the Policy will result in disciplinary action, up to, and including, immediate termination of employment.

8. **General.**

(a) This offer letter, together with the Confidentiality Agreement and Non-Competition Agreement, will constitute our entire offer as to your employment by the Company and will supersede any prior representations, statements, agreements or understandings, whether in writing or oral. This offer letter may only be amended or modified in writing signed by the Company.

(b) The headings in this offer letter are for convenience and reference only, and are not intended to modify or affect the meaning of any of the terms in this offer letter.

(c) This offer letter, if accepted, shall form our agreement as to the terms of your at-will employment with the Company, and shall be governed by the laws of the State of New Jersey, without giving effect to the conflict of law principles thereof.

(d) If you accept this offer letter, any legal action or proceeding related to or arising out of your employment with the Company shall be brought exclusively in the courts of the State of New Jersey or the United States District Court for the District of New Jersey and you expressly consent to the exercise of jurisdiction over you by such courts.

(e) Should you accept employment with the Company pursuant to the terms of this offer letter, the Company shall have the right to assign the rights and obligations set forth herein to its successors and assigns, or to any of its affiliates, and all covenants and agreements hereunder shall inure to the benefit of and be enforceable by said successors or assigns, or affiliates. You shall have no right to assign the rights or obligations created by your acceptance of this offer letter, and any such purported assignment by you shall be null and void.

9. **Conditions for Employment.** The offer of employment contained in this offer letter is contingent upon:

(a) Your completion of a drug screening with a satisfactory result within three (3) business days of your receipt of your new hire package.

(b) The Company's completion of a background check with a satisfactory result. An authorization form relating to the background check will be sent to you via email. The authorization form must be completed and submitted as soon as possible.

(c) Your presentation of documentation, in accordance with federal I-9 requirements (attached), that serves as proof of your eligibility to work in the United States under applicable federal immigration laws.



You may accept this offer of employment by signing this offer letter, the Confidentiality Agreement, and the Non-Competition Agreement. If accepted, the terms and conditions set forth herein will govern your employment with the Company.
This offer of employment will expire three (3) business days from the date of this offer letter. Within this period, you are requested to sign this offer letter, or notify the Company if you choose not to accept it.

Accepted and Agreed:	Incontact, Inc.
DocuSigned by: 3DFA2F261783480...	Signed by: EBDDCAD31E6A40E...
Signature	Signature
Noah Coleman	Bryston Kehl
Name	Name
	Director, Sales Development, CX
	Title
Date	March 6, 2025
	Date
	Signed by: 1345619B72BD41C...
	Signature
	Marcie Ballard
	Name
	Senior HRBP
	Title
	Date
	March 6, 2025



CONFIDENTIALITY AND DEVELOPMENTS AGREEMENT

March 6, 2025

Noah Coleman
630 W Allen Cv
Midvale, UT 84047

Dear Noah:

In consideration of and as a condition to your employment by Incontact, Inc., a NICE company, you covenant and agree as follows:

1. Confidentiality.

(a) Definition of Confidential Information. As used herein, and in the Non-Competition Agreement between you and Incontact, Inc. dated as of the date hereof, "Confidential Information" means any confidential, trade secret, or non-public proprietary information of Company (as defined below), including, without limitation, information relating to the Company's products, services, customers, prospective customers, employees, and financial information, which is or has been disclosed to you or of which you became aware as a consequence of or through your relationship with the Company and which has value to the Company and is not generally known to its competitors. Without limiting the generality of the foregoing, Confidential Information includes any scientific, technical, trade or business secrets or confidential or proprietary information of any third party, which information the Company is under an obligation to keep confidential. Confidential Information includes information and materials developed by you.

(b) Keeping Information Confidential. You agree that you will not at any time use, disclose, publish, or give to any person or entity any Confidential Information, except as may be required in the ordinary course of performing your duties as an employee of the Company. You further agree that you will use your best efforts to protect any Confidential Information for and on behalf of the Company. Your obligation with regard to the protection and nondisclosure of Confidential Information extends to Confidential Information that may have been disclosed to you by the Company prior to the date you sign this Confidentiality and Developments Agreement ("Agreement"). Notwithstanding the foregoing, it is not a violation of this Agreement to disclose Confidential Information as required by a subpoena or court order, or as otherwise required by law. Further, you understand that nothing contained in this Agreement limits your ability to file a charge or complaint with any government agency. You further understand that this Agreement does not limit your ability to communicate with any government agencies or otherwise participate in any investigation or proceeding that may be conducted by any government agency, including providing documents or other information without notice to the Company. This Agreement does not limit your right to receive an award for information provided to any government agencies.

(c) Limitation on use of information. You agree that you will not use or attempt to use any Confidential Information in any manner which may injure or cause loss or may be calculated to injure or cause loss whether directly or indirectly to the Company. You also agree that you shall not use or permit to be used any Confidential Information otherwise than for the benefit of the Company.

(d) Limitation on Copies. You agree that you will not make any copies of Confidential Information, except when appropriate for the furtherance of the business of the Company or you are duly and specifically authorized to do so.



(e) Obligations After Employment Ends. Your obligations under this Agreement continue after your employment by the Company ends. You agree that you will not, after the termination of your employment, disclose (except as required by law as described in Section 1(b) of this Agreement), or use or permit to be used, any Confidential Information. Immediately upon the termination of your employment you shall deliver all of the Confidential Information and other proprietary materials, and all copies thereof, in your possession, custody, or under your control, to the Company or, if directed to, destroy any such information in your possession, custody, or control.

(f) What is Excluded from Confidential Information. Confidential Information does not include information, which: (i) was properly and lawfully known by you either prior to its disclosure by the Company to you or prior to your development of such information in the course of your employment by the Company; (ii) is publicly known through publication or otherwise through no wrongful act by you; (iii) is independently made available to you by a third party who is under no obligation to keep such information confidential; or (iv) that has otherwise entered the public domain through lawful means.

(g) Importance of the Confidential Information. You acknowledge that: (i) the Company has developed and will develop its Confidential Information over a significant period of time and at significant expense; (ii) its Confidential Information is integral to the goodwill of the Company; and (iii) protection of Confidential Information is necessary to the conduct of the Company's business.

2. Intellectual Property. You agree that any and all Confidential Information, ideas, inventions, discoveries, technology, improvements, know-how, copyrights, tangible works of expression, derivative works, trademarks, service marks, trade secrets, and the like ("Intellectual Property"), which are developed, conceived, created, discovered, learned, produced and/or otherwise generated by you, whether individually or otherwise, while you are employed by the Company, whether or not during working hours, that relate to: (a) current and anticipated businesses and/or activities of the Company; (b) the Company's current and anticipated research or development; or (c) any work performed by you for the Company are and shall be the sole and exclusive property of the Company, and the Company shall own any and all worldwide right, title and interest in, to and under such Intellectual Property. You hereby agree to assign, and hereby do assign, to the Company any and all worldwide right, title and interest in, to and under such Intellectual Property. You acknowledge and agree that all original works of authorship, which are made by you (solely or jointly with others) within the scope of your employment, and which are protectable by copyright are "works made for hire," as that term is defined in the United States Copyright Act (17 U.S.C., Section 101). To the extent allowed by law, the assignment in this Section 2 includes all rights of paternity, integrity, disclosure and withdrawal and any other rights that may be known as or referred to as "moral rights," "artist's rights," "droit moral," or the like (collectively "Moral Rights"). To the extent you retain any such Moral Rights under applicable law, you hereby ratify and consent to any action that may be taken with respect to such Moral Rights by or authorized by Company and agree not to assert any Moral Rights with respect thereto. You will confirm any such ratifications, consents and agreements from time to time as requested by Company. You hereby agree, whenever requested to do so by the Company, either while employed or after your employment ends, to execute any and all applications, assignments or other instruments, which the Company deems desirable or necessary to protect its interests in, and to secure the Company's rights in, any Company Intellectual Property. After your employment ends, the Company shall reimburse you for all related reasonable out-of-pocket expenses incurred in rendering such services, subject to your providing documentation of such expenses as required by Company policies. You further agree to make a complete written disclosure to the Company of any Intellectual Property, when and as it arises, is conceived or is reduced to practice, specifically pointing out the features or concepts that you believe to be new or different. If the Company is unable for any reason, after reasonable effort, to secure your signature on any document needed in connection with the actions specified in this Section, you hereby irrevocably designate and appoint the Company and its duly authorized officers and agents as your agent and attorney-in-fact, to act for and on your behalf to execute, verify and file any such documents and to do all other lawfully permitted acts to further such purposes with



the same legal force and effect as if executed by you. This power of attorney is deemed coupled with an interest and is irrevocable. You hereby waive and quitclaim to the Company any and all claims, of any nature whatsoever, which you now or may hereafter have for infringement of any proprietary rights assigned to the Company. You acknowledge that, should you misappropriate any trade secret from the Company, the Company, as the owner of any such trade secret, may bring a civil action against you, and further acknowledge that any such trade secret is related to a product or service used in, or intended for use in, interstate or foreign commerce. You understand that you will not be held liable for the disclosure of a trade secret or other Confidential Information that is made (i) in confidence to a state, federal, or local government official or to an attorney; and (ii) solely for the purpose of reporting or investigating a suspected violation of law. You further understand that you shall not be held liable for the disclosure of a trade secret or other Confidential Information that is made in a complaint or other document filed in a lawsuit or other proceeding, so long as any such filing is made under seal. You also understand that if you file a lawsuit alleging retaliation by the Company for your permitted disclosure hereunder, you may disclose the relevant trade secret or other Confidential Information to your attorney and use such trade secret or other Confidential Information in the court proceeding only if (1) you ensure that any court filing that includes the trade secret or Confidential Information at issue is made under seal; and (2) you do not otherwise disclose the trade secret or other Confidential Information except as required by court order.

3. Pre-Existing Intellectual Property; Other Agreements.

(a) Pre-Existing Intellectual Property. You have attached hereto as Exhibit A a complete list of all inventions, original works of authorship, developments, improvements, and trade secrets that you have, alone or jointly with others, conceived, developed or reduced to practice or caused to be conceived, developed or reduced to practice prior to the commencement of your employment with the Company, that you consider to be your property or the property of third parties and that you wish to have excluded from the scope of this Agreement ("Prior Inventions"). If disclosure of an item on Exhibit A would cause you to violate any prior confidentiality agreement, you understand that you are not to list such in Exhibit A, but to inform the Company that all items have not been listed for that reason. A space is provided on Exhibit A for such purpose. If no list is attached, you represent that there are no such items. Furthermore, you represent and warrant that if any Prior Inventions are included on Exhibit A, they will not materially affect your ability to perform all obligations as an employee for the Company. You will inform the Company in writing before delivering or disclosing such Prior Inventions to the Company, incorporating such Prior Inventions with or into any Company Intellectual Property or any other Company product, process or service or otherwise utilizing such Prior Invention in the course of your employment with the Company, and you hereby grant the Company a nonexclusive, royalty-free, fully paid-up, perpetual, irrevocable, transferable, worldwide license (with the right to grant and authorize multiple tiers of sublicenses) to make, have made, use, import, offer for sale, sell, reproduce, distribute, modify, adapt, prepare derivative works of, display, perform, and otherwise exploit such Prior Inventions, without restriction, including, without limitation, as part of or in connection with any Company Intellectual Property, and to practice any method related thereto. You shall not incorporate any Intellectual Property owned by any third party ("Third-Party Materials") with or into any Company Intellectual Property or any other Company product, process, or service or use any Third-Party Materials to which the Company has no valid right or license without the Company's prior written permission.

(b) Inventions Laws. You recognize that, in the event a specific applicable law, regulation, rule or public policy (an "Inventions Law") prohibits my assignment of any Intellectual Property to the Company, this Agreement will not be deemed to require assignment of any invention which qualifies fully for protection under an Inventions Law by virtue of the fact that any such invention was, for example, developed entirely on my own time without using the Company's equipment, supplies, facilities, or trade secrets and neither related to the Company's actual or anticipated business, research or development, nor resulted from work performed by you for the Company. In the absence of an Inventions Law, the preceding sentence will not apply. You specifically acknowledge that, in accordance with Wash. Rev. Code



Ann. § 49.44.140–49.44.150, 765 Ill. Comp. Stat. Ann. 1060/2, Kan. Stat. Ann. § 44-130, and Minn. Stat. Ann. § 181.78 this Agreement does not require you to assign or offer to assign to the Company any invention that you developed entirely on my own time without using the Company's equipment, supplies, facilities or trade secret information unless (i) the invention relates directly to the business of the Company or the Company's actual or demonstrably anticipated research or development, or (ii) the invention results from any work performed by me for the Company, as set forth herein.

(c) No Conflicting Obligations to Other Persons or Entities. You represent and warrant that your performance of your duties as an employee of the Company will not breach any agreement to keep in confidence information acquired by you in confidence or in trust prior to your employment by the Company. You further agree not to disclose to the Company any confidential information of any prior employer and not to use any such confidential information in performing your obligations hereunder, but instead will rely on your generalized knowledge and skill in performing your services. You hereby agree to indemnify and hold the Company harmless against loss, damage, liability or expense arising from any claim based upon circumstances alleged to be inconsistent with such representations and warranties.

(d) Continuation if Employment Changes or Ends. You understand and agree that your obligations under this Agreement shall survive any change in your position, title or function with the Company and the termination of your employment regardless of the manner of such termination and shall be binding upon your heirs, executors, administrators and legal representatives in their capacity as such. Without limiting the foregoing, during the period of your employment and for one (1) year after termination of your employment for any reason, you will promptly disclose to the Company fully and in writing all patent applications filed by you or on your behalf. You agree to keep and maintain adequate and current records (in the form of notes, sketches, drawings and in any other form that may be required by the Company) of all Intellectual Property made by you during the period of your employment at the Company, which records shall be available to and remain the sole and exclusive property of the Company at all times.

(e) Return of Company Documents. When you leave the employ of the Company, you will deliver to the Company (and will not keep in your possession, recreate or deliver to anyone else) any and all devices, records, data, notes, reports, proposals, lists, correspondence, specifications, drawings blueprints sketches materials equipment, other documents or property, together with all copies thereof (in whatever medium recorded) belonging to the Company, its successors or assigns. You further agree that any property situated on the Company's premises and owned by the Company, including disks and other storage media, filing cabinets or other work areas, is subject to inspection by Company personnel at any time with or without notice. Prior to leaving, you will cooperate with the Company in completing and signing the Company's termination statement for technical and management personnel.

(f) Notification of New Employer. If you leave the employ of the Company, you hereby consent to the notification of your new employer of your rights and obligations under this Agreement.

(g) No Obligation to Continue Employment. You understand that this Agreement does not create an obligation on the Company or any other person or entity to continue your employment.

(h) Definition of Company. The term "Company" means and shall include Incontact, Inc., and any of its current or future parents, subsidiaries, subdivisions or affiliates.

(i) Definition of Employment and Employee. For purposes of this Agreement, the terms "employment" and "employee" shall include any position you hold with the Company from time to time.

4. General.



(a) Injunctive Relief. You hereby expressly acknowledge that any breach or threatened breach of any of the terms and/or conditions set forth in this Agreement will result in substantial, continuing and irreparable injury to the Company. Therefore, you, hereby agree that, in addition to any other remedy that may be available to the Company, the Company shall be entitled to injunctive relief, specific performance or other equitable relief by a court of appropriate jurisdiction in the event of any breach or threatened breach of the terms of this Agreement.

(b) Amendments. Any amendment to or modification of this Agreement must be in writing signed by both parties.

(c) Waivers and Consents. The terms and provisions of this Agreement may be waived, or consent for the departure therefrom granted, only by a written document executed by the parties entitled to the benefits of such terms or provisions. No such waiver or consent shall be deemed to be or shall constitute a waiver or consent with respect to any other terms or provisions of this Agreement, whether or not similar. Each such waiver or consent shall be effective only in the specific instance and for the purpose for which it was given, and shall not constitute a continuing waiver or consent. No failure or delay by a party hereto in exercising any right, power or remedy under this Agreement, and no course of dealing between the parties hereto, shall operate as a waiver of any such right, power or remedy of the party. No single or partial exercise of any right, power or remedy under this Agreement by a party, nor any abandonment or discontinuance of steps to enforce any such right, power or remedy, shall preclude such party from any other or further exercise thereof or the exercise of any other right, power or remedy under this Agreement. The election of any remedy by a party hereto shall not constitute a waiver of the right of such party to pursue other available remedies. No notice to or demand on a party not expressly required under this Agreement shall entitle the party receiving such notice or demand to any other or further notice or demand in similar or other circumstances or constitute a waiver of the rights of the party giving such notice or demand to any other or further action in any circumstance without such notice or demand.

(d) Scope and Assignment. This Agreement will apply to your employment by any Company entity. Incontact, Inc. shall have the right to assign this Agreement to its successors and assigns, or to any of its affiliates, and all covenants and agreements hereunder shall inure to the benefit of and be enforceable by said successors or assigns, or affiliates. This Agreement may not be assigned by you, and any such assignment shall be null and void.

(e) Severability of Provisions. The parties intend this Agreement to be enforced as written. However, the parties agree that each provision herein shall be treated as a separate and independent clause, and the unenforceability of any one clause shall in no way impair the enforceability of any of the other clauses in this Agreement and each portion and provision of this Agreement shall be valid and enforceable to the fullest extent permitted by law. Moreover, if one or more of the provisions contained in this Agreement shall for any reason be held to be excessively broad as to scope, activity or subject so as to be unenforceable at law, such provision or provisions shall be construed by the appropriate judicial body by limiting and reducing it or them, so as to be enforceable to the maximum extent compatible with the applicable law as it shall then appear.

(f) Governing Law. This Agreement shall be governed by and construed in accordance with the law of the State of New Jersey, without giving effect to the conflict of law principles thereof.

(g) Forum Selection. Any legal action or proceeding arising out of or related to this Agreement or with respect to the validity, application, enforcement or breach of this Agreement shall be brought exclusively in the courts of the State of New Jersey or the United States District Court for the District of New Jersey and you expressly and irrevocably consent to the exercise of jurisdiction over you by such courts.



(h) Entire Agreement. This Agreement embodies the entire agreement and understanding between the parties hereto with respect to the subject matter hereof and supersedes all prior oral or written agreements and understandings relating to the subject matter hereof. No statement, representation, warranty, covenant or agreement of any kind not expressly set forth in this Agreement shall affect, or be used to interpret, change or restrict, the express terms and provisions of this Agreement.

(i) Headings and Captions. The headings and captions of the various subdivisions of this Agreement are for convenience of reference only and shall in no way modify, or affect the meaning or construction of any of the terms or provisions of this agreement.

(j) Survival of Representations. The representations set forth herein shall survive the execution hereof.

(k) Expenses. Should any party breach this Agreement, in addition to all other remedies available at law or in equity, such party shall pay all of any other party's costs and expenses resulting therefrom and/or incurred in enforcing this Agreement, including reasonable legal fees and expenses.

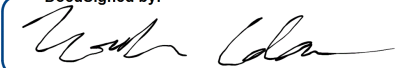
(l) Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Additionally, the parties agree that: (a) this Agreement may be signed using electronic signatures facilitated by a U.S. E-SIGN Act-compliant (i.e., the Electronic Signatures in Global and National Commerce Act - E-SIGN, Pub.L. 106-229, 114 Stat. 464, enacted June 30, 2000, 15 U.S.C. ch.96) electronic signature provider ("e-signatures"); (b) e-signatures shall have the same effect as original signatures; and (c) the parties are subject to the provisions of the U.S. E-SIGN Act.



Please indicate your agreement to and acceptance of the foregoing by signing below.

Accepted and Agreed:

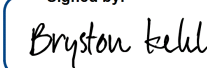
Incontact, Inc.

DocuSigned by:

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Signature
Noah Coleman

Name

Date March 7, 2025

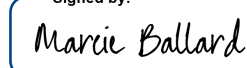
Signed by:

EBDDCAD31E6A40E...

Signature
Bryston Kehl

Name
Director, Sales Development, CX

Title

Date March 6, 2025

Signed by:

1345619B72BD41C...

Signature
Marcie Ballard

Name
Senior HRBP

Title

Date March 6, 2025



EXHIBIT A
Employee Agreement

Incontact, Inc.
221 River Street, 10th Floor
Hoboken, NJ 07030

1. The following is a complete list of all inventions or improvements relevant to the subject matter of my employment by Incontact, Inc. (the "Company"), that have been made or conceived or first reduced to practice by me alone or jointly with others prior to my engagement by the Company:
- ☒ No inventions or improvements.
- ☐ See below.

N/A

- ☐ Due to confidentiality agreements with a prior employer, I cannot disclose certain inventions that would otherwise be included on the above-described list.
- ☐ Additional sheets attached.
2. I propose to bring to my employment the following, devices, materials and documents of a former employer or other person to whom I have an obligation of confidentiality that are not generally available to the public, which materials and documents may be used in my employment pursuant to the express written authorization of my former employer or such other person (a copy of which is attached hereto):
- ☒ No inventions or improvements.
- ☐ See below.

N/A

☐ Additional sheets attached.

Date: March 7, 2025, 20March 7, 2025

Very truly yours,

Noah Coleman

DocuSigned by:

3DFA2F261783480...



NON-COMPETITION AGREEMENT

March 6, 2025

Noah Coleman
630 W Allen Cv
Midvale, UT 84047

Dear Noah:

In consideration of and as a condition to your employment by Incontact, Inc., a NICE company, you covenant and agree as follows:

1. **Prohibited Competition.**

1.1 **Certain Acknowledgements and Agreements.**

(a) We have discussed, and you recognize and acknowledge that the business operations of the Company (as defined below) involve the development, marketing, sale, and support of products and services related to the following: ACD and other Omnichannel routing, including voice and call routing; call routing, call pairing, and call optimization through the use of artificial intelligence or predictive analytics; interactive voice response (IVR) and IVR optimization; Predictive dialer; logging and recording of interactions via any channel; workforce management, scheduling, and planning for customer services and back offices; quality management for customer services and back offices, including employee evaluation, coaching, reporting, and guidance; performance management for customer service and back office, including gamification; speech and text analytics; customer journey optimization; desktop analytics; desktop guidance and desktop automation; robotic process automation; feedback management; voiceprint biometrics and authentication; incentive compensation management; financial fraud detection and prevention, anti-money laundering, and financial and trading compliance; digital assistant and chat bots; and any business in which the Company may in the future enter into or operate (the "Business").

(b) You acknowledge and agree that, during the course of your performing services for the Company, the Company will furnish, disclose or make available to you Confidential Information (as described in the Confidentiality and Developments Agreement between you and Incontact, Inc. dated as of the date hereof) related to the Company's Business and that the Company may provide you with unique and specialized training. You also acknowledge that such Confidential Information and such training have been developed, and will be developed, by the Company through the expenditure by the Company of substantial time, effort, resources and money and that all such Confidential Information and training could be usable by you to compete with the Company. You also may, depending on your job responsibilities, be introduced to customers of the Company, or have responsibilities for developing or maintaining customer relationships. You acknowledge and agree that the Company has made substantial investments in time, effort, money and resources in developing and maintaining its customer relationships and protecting its Confidential Information and goodwill, that long-term customer relationships often can be difficult to develop and require a significant investment of time, effort, money and resources and that the Company pays its employee to, among other things, develop and preserve customer goodwill, customer loyalty, and customer contacts, as well as Confidential Information on behalf of the Company.

1.2 **Covenants Not to Compete or Solicit Employees or Consultants to Leave.**

(a) During the period in which you perform services for or at the request of the Company (the "Employment Period") and for a period of twelve (12) months following the expiration or termination of the Employment Period for any reason (together, the "Noncompetition Period"),



you shall not, directly or indirectly, on behalf of any business, which is competitive with any aspect of the Business within the United States (the "Restricted Territory"), without the prior written consent of the Company, provide services of the type you provided to the Company within the last two (2) years of your employment with the Company, except that nothing contained herein shall preclude you from purchasing or owning securities of any such business if such securities are publicly traded, and provided that your holdings do not exceed three (3%) percent of the issued and outstanding securities of any class of securities of such business.

(b) During the Noncompetition Period, you shall not, directly or indirectly, without the prior written consent of the Company:

(i) either individually or on behalf of or through any third party, solicit, attempt to solicit, divert or appropriate, for the purpose of competing with any aspect of the Business any customer or prospective customer of the Company located within the Restricted Territory: (1) with which you dealt on behalf of the Company; (2) whose dealings with the Company were coordinated or supervised by you; (3) about which you obtained Confidential Information in the ordinary course of business as a result of your association with the Company; or (4) which receives products or services from the Company, the sale or provision of which resulted in compensation, commission, or earnings for the Company during two (2) year period preceding the date of termination of your employment with the Company.

(ii) either individually or on behalf of or through any third party, directly or indirectly, employ, or knowingly permit any company or business organization directly or indirectly controlled by you to employ or solicit any other employees of or consultants to the Company for employment in the Restricted Territory competitive with the Company's Business.

1.3 Reasonableness of Restrictions. You further recognize and acknowledge that: (a) the types of employment which are prohibited by this Agreement are narrow and reasonable in relation to the skills which represent your principal salable asset both to the Company and to your other prospective employers; and (b) the geographical scope of the provisions of this Agreement is reasonable, protects the legitimate interests of the Company, is fair in light of the Company's marketing its services and selling its products throughout the Restricted Territory in order to have a sufficient customer base to make the Company's Business profitable and in light of the limited restrictions on the type of employment prohibited herein compared to the types of employment for which you are qualified to earn your livelihood, and does not impose an undue hardship on you.

2. Other Agreements.

2.1 Disclosure to Future Employers. You agree that you will provide, and that the Company may similarly provide in its discretion, a copy of the covenants contained in this Agreement to any business or enterprise which you may directly, or indirectly, own, manage, operate, finance, join, control or in which you participate in the ownership, management, operation, financing, or control, or with which you may be connected as an officer, director, employee, partner, principal, agent, representative, consultant or otherwise.

2.2 No Conflicting Obligations to Other Persons or Entities. You represent and warrant that your employment by Incontact, Inc., and your performing your duties as an employee, are not in violation of any agreement with or obligation owed to any prior employer, any judicial order, or any other legal obligation. You hereby agree to indemnify and hold the Company harmless against loss, damage, liability or expense arising from any claim based upon circumstances alleged to be inconsistent with such representation and warranty.



2.3 Continuation if Employment Changes or Ends. You understand and agree that your obligations under this Agreement shall survive any change in your position, title or function with Incontact, Inc., your employment by any affiliate of Incontact, Inc., and the termination of your employment with the Company regardless of the reason for of such termination, and shall be binding upon your heirs, executors, administrators and legal representatives in their capacity as such.

2.4 No Obligation to Continue Employment. You understand that this Agreement does not create an obligation on the Company or any other person or entity to continue your employment.

2.5 Definition of Company. The term "Company" means and shall include Incontact, Inc., and any of its current or future parents, subsidiaries, subdivisions, or affiliates.

2.6 Definition of Employment and Employee. For purposes of this Agreement, the terms "employment" and "employee" shall include any position you hold with the Company from time to time.

3. General.

3.1 Injunctive Relief. You hereby expressly acknowledge that any breach or threatened breach of any of the terms and/or conditions set forth in this Agreement will result in substantial, continuing and irreparable injury to the Company. Therefore, you hereby agree that, in addition to any other remedy that may be available to the Company, the Company shall be entitled to injunctive relief, specific performance or other equitable relief by a court of appropriate jurisdiction in the event of any breach or threatened breach of the terms of this Agreement. Furthermore, in addition to the remedies the Company may seek and obtain pursuant to this section, the period during which the covenants contained herein apply shall be extended by any and all periods during which you shall be found by a court possessing personal jurisdiction over you to have been in violation of the covenants contained in this Agreement.

3.2 Amendments. Any amendment to or modification of this Agreement must be in writing signed by both parties.

3.3 Waivers and Consents. The terms and provisions of this Agreement may be waived, or consent for the departure therefrom granted, only by a written document executed by the Company. No such waiver or consent shall be deemed to be or shall constitute a waiver or consent with respect to any other terms or provisions of this Agreement, whether or not similar. Each such waiver or consent shall be effective only in the specific instance and for the purpose for which it was given, and shall not constitute a continuing waiver or consent. No failure or delay by a party hereto in exercising any right, power or remedy under this Agreement, and no course of dealing between the parties hereto, shall operate as a waiver of any such right, power or remedy of the party. No single or partial exercise of any right, power or remedy under this Agreement by a party, nor any abandonment or discontinuance of steps to enforce any such right, power or remedy, shall preclude such party from any other or further exercise thereof or the exercise of any other right, power or remedy under this Agreement. The election of any remedy by a party hereto shall not constitute a waiver of the right of such party to pursue other available remedies. No notice to or demand on a party not expressly required under this Agreement shall entitle the party receiving such notice or demand to any other or further notice or demand in similar or other circumstances or constitute a waiver of the rights of the party giving such notice or demand to any other or further action in any circumstance without such notice or demand.

3.4 Assignment. Incontact, Inc. shall have the right to assign this Agreement to its successors and assigns, or to any of its affiliates, and all covenants and agreements hereunder shall inure to the benefit of and be enforceable by said successors or assigns, or affiliates. This Agreement may not be assigned by you, and any such assignment shall be null and void.



3.5 Severability of Provisions. The parties intend this Agreement to be enforced as written. However, the parties agree that each provision herein shall be treated as a separate and independent clause, and the unenforceability of any one clause shall in no way impair the enforceability of any of the other clauses in this Agreement and each portion and provision of this Agreement shall be valid and enforceable to the fullest extent permitted by law. Moreover, if one or more of the provisions contained in this Agreement shall for any reason be held to be excessively broad as to scope, activity or subject so as to be unenforceable at law, such provision or provisions shall be construed by the appropriate judicial body by limiting and reducing it or them, so as to be enforceable to the maximum extent compatible with the applicable law as it shall then appear.

3.6 Governing Law. This Agreement shall be governed by and construed in accordance with the law of the State of New Jersey, without giving effect to the conflict of law principles thereof.

3.7 Forum Selection. Any legal action or proceeding arising out of or related to this Agreement or with respect to the validity, application, enforcement or breach of this Agreement shall be brought exclusively in the courts of the State of New Jersey or the United States District Court for the District of New Jersey and you expressly and irrevocably consent to the exercise of jurisdiction over you by such courts.

3.8 Entire Agreement. This Agreement embodies the entire agreement and understanding between the parties hereto with respect to the subject matter hereof and supersedes all prior oral or written agreements and understandings relating to the subject matter hereof. No statement, representation, warranty, covenant or agreement of any kind not expressly set forth in this Agreement shall affect, or be used to interpret, change or restrict, the express terms and provisions of this Agreement.

3.9 Headings and Captions. The headings and captions of the various subdivisions of this Agreement are for convenience of reference only and shall in no way modify, or affect the meaning or construction of any of the terms or provisions of this Agreement.

3.10 Survival of Representations. The representations set forth herein shall survive the execution hereof.

3.11 Expenses. Should any party breach this Agreement, in addition to all other remedies available at law or in equity, such party shall pay all of any other party's costs and expenses resulting therefrom and/or incurred in enforcing this Agreement, including reasonable legal fees and expenses.

3.12 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Additionally, the parties agree that: (a) this Agreement may be signed using electronic signatures facilitated by a U.S. E-SIGN Act-compliant (i.e., the Electronic Signatures in Global and National Commerce Act - E-SIGN, Pub.L. 106-229, 114 Stat. 464, enacted June 30, 2000, 15 U.S.C. ch.96) electronic signature provider ("e-signatures"); (b) e-signatures shall have the same effect as original signatures; and (c) the parties are subject to the provisions of the U.S. E-SIGN Act.

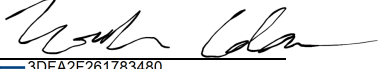


Please indicate your agreement to and acceptance of the foregoing by signing below.

Accepted and Agreed:

Incontact, Inc.

DocuSigned by:



3DFA2F261783480...

Signature

Noah Coleman

Name

Date

March 7, 2025

Signed by:



EBDDCAD31E6A40E...

Signature

Bryston Kehl

Name

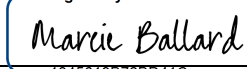
Director, Sales Development, CX

Title

March 6, 2025

Date

Signed by:



1345619B72BD41C...

Signature

Marcie Ballard

Name

Senior HRBP

Title

March 6, 2025

Date